

Vinod Kumar Awasathi v. U.P.P.C.L.

High Court of Judicature at Allahabad · Division Bench · 3 August 2016 · WRIT - C No. 35841 of 2016 · **Writ disposed; EE to consider objection to provisional theft bill under s.126 and cl. 8.5.**

HEADNOTE

A provisional bill of Rs. 4,44,025 issued after a checking report found theft of electricity is to be objected to under s.126 of the Electricity Act, 2003 and s.8.5 of the Electricity Supply Code, 2005. A notice already served as objection must be considered by the Executive Engineer, who will pass an assessment order. The writ was disposed without examining the bill on merits.

FACTUAL SUMMARY

After a checking report recorded theft of electricity, U.P. Power Corporation Limited raised a provisional bill of Rs. 4,44,025 against Vinod Kumar Awasathi. He invoked the writ jurisdiction of the Allahabad High Court. An objection in the form of a notice (annexure 3) had already been served against the provisional bill. Counsel for the petitioner and the licensee were heard by a Division Bench.

HOLDING-UNITS

INTERPLAY · EA2003::126

provisional theft bill — statutory objection

HOLDING

Where a provisional bill is issued on a checking report finding theft of electricity, objection does not lie in writ. The consumer must file a reply under s.126 of the Electricity Act, 2003 and s.8.5 of the Electricity Supply Code, 2005; a notice already so filed shall be considered by the concerned Executive Engineer, who will then pass an appropriate assessment order. ¶ 1

FLAG Court also cites 'Section 8.5' of the Electricity Supply Code, 2005; that clause number is not among the catalogued 8.1/8.2 theft-UUE provisions.

PRINCIPLE TAGS

opportunity-before-final-assessment A provisional bill of Rs. 4,44,025 issued after a checking report found theft of electricity is to be objected to under s.126 of the Electricity Act, 2003 and s.8.5 of the Electricity Supply Code, 2005.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE THEFT FINDING AND THE QUANTUM OF THE RS. 4,44,025 PROVISIONAL BILL
Left to the Executive Engineer to consider the objection and pass an assessment order. ¶ 1